

ALITO, J., dissenting

any differently in this situation. But as far as the present case is concerned, this question is academic because *Apodaca* did not overrule any prior decision of this Court. At most, what the Court had “recognized,” *ante*, at 92, in prior cases is that the Sixth Amendment guaranteed the right to a unanimous jury verdict *in trials in federal and territorial courts*.¹⁵ Whether the same rule applied in state prosecutions had not been decided, and indeed, until *Duncan v. Louisiana*, 391 U. S. 145, 154–158 (1968), was handed down just four years before *Apodaca*, the Sixth Amendment had not been held to apply to the States.

The final question is whether Justice Powell’s reasoning in *Apodaca*—namely, his view that the Fourteenth Amendment did not incorporate every aspect of the Sixth Amendment jury-trial right—is a binding precedent, and the answer to that question is no. When, in the years after *Apodaca*, new questions arose about the scope of the jury-trial right in state court—as they did in cases like *Apprendi v. New Jersey*, 530 U. S. 466 (2000), and *Blakely v. Washington*, 542 U. S. 296 (2004)—nobody thought for a second that *Apodaca* committed the Court to Justice Powell’s view that the right has different dimensions in state and federal cases. And no one on this Court or on a lower court had any trouble locating the narrow common ground between Justice Powell and the plurality in *Apodaca*: The States need not require unanimity to comply with the Constitution.

For all these reasons, *Apodaca* clearly was a precedent, and if the Court wishes to be done with it, it must explain why overruling *Apodaca* is consistent with the doctrine of *stare decisis*.

III

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Stare decisis has been a fundamental part of our jurisprudence since the founding, and it is an important doctrine.

¹⁵ See, e. g., *Andres v. United States*, 333 U. S. 740, 748 (1948); *Thompson v. Utah*, 170 U. S. 343, 351 (1898).